

which may extend to two years, or with fine which may extend to one thousand rupees, or with both.

Comments.

Section 173 provides for punishment for a railway servant on duty for abandoning train without authority.

174. Obstructing running of train, etc. – If any railway servant (whether on duty or otherwise) or any other person obstructs or causes to be obstructed or attempts to obstruct any train or other rolling stock upon a railway, -

- (a) by squatting or picketing or during any rail roko agitation or bandh, ; or
- (b) by keeping without authority any rolling stock on the railway or
- (c) by tampering with, disconnecting or interfering in any other manner with its hose pipe or tampering with signal gear or otherwise, he shall be punishable with imprisonment for a term which may extend to two years, or with fine which may extend to two thousand rupees or with both.

Comment

Section 174 provides for punishment for any person including a railway servant for causing obstruction to trains.

175. Endangering the safety of persons. – If any railway servant for causing obstructions to trains.

- (a) by disobeying any rule made under this Act ; or
- (b) by disobeying any instruction, direction or order under this Act or the rules made there under ; or
- (c) by any rash or negligence act or omission,

he shall be punishable with imprisonment for a term which may extend to two years, or with fine which may extend to one thousand rupees, or with both.

Section 175 provides for punishment for railway servants on duty for endangering the safety of any person traveling on a railway.

176. Obstructing level crossing. – If any railway servant unnecessarily

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- (a) allows any rolling stock to stand across a place where the railway crosses a public road on the level ; or
- (b) keeps a level crossing closed against the public, he shall be punishable with fine which may extend to one hundred rupees.

Comment

Section 176 lays down the punishment for a railway servant unnecessarily obstructing railway crossing.

177. False returns. – If any railway servant required to furnish return by or under this Act, signs and furnishes a return which is false in any material particular or which he knows or believes to be false, or does not believe to be true, he shall be punishable with imprisonment which may extend to one year, or with fine which may extend to five hundred rupees, or with both.

Comment

Section 177 provides for punishment for a railway servant furnishing false returns.

178. Making a false report by a railway servant. –If any railway servant who is required by a railway administration to inquire into a claim for loss, destruction, damage, deterioration or non-delivery of any consignment makes a report which is false or which he knows or believes to be false or does not believe to be true, he shall be punishable with imprisonment for a term which may extend to two years, or with fine which may extend to one thousand rupees, or with both.

Comment

Section 178 provides punishment for a railway servant for making a false report in claims enquiry.

179. Arrest for offences under certain sections. –

(1) IF any person commits any offence mentioned in sections 150 to 152, he may be arrested without warrant or other written authority by any railway servant or police officer not below the rank of a head Constable.

(2) If any person commits any offence mentioned in Secs. 137, 141 to 147, 153 to 157, 159 to 167, and 172 to 176, he may be arrested without warrant or other written authority by the officer authorised by a notified order of the Central Government.